

P.Ranjith Pandi vs Thangapandiyammal on 20 December, 2024

C.R.P. (PD) (MD) No.1

BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on 05.12.2024
Pronounced on 20.12.2024

CORAM

THE HON'BLE MRS.JUSTICE K.GOVINDARAJAN THILAKAVADI

C.R.P. (MD) No.1745 of 2024 and
CMP(MD).No.10068 of 2024

P.Ranjith Pandi ... Petitioner / res

Vs.

Thangapandiyammal .. Respondent / peti

Prayer: Civil Revision Petition filed under Article 227 of the Const of India against the fair and decreetal order, dated 19.03.2024 made I.A.No.100 of 2022 in HMOP.No.33 of 2020 on the file of the Subordinate Judge, Thirumangalam.

For Petitioner : Mr. Babu Rajendiran

For respondent : Mr.P.R. Prithivi Raj

ORDER

This Civil Revision Petition is preferred against the order, dated _____
<https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024 19.03.2024 made in I.A.No.100 of 2022 in HMOP.No.33 of 2020 on the file of the Subordinate Judge, Thirumangalam.

2. The revision petitioner / husband filed the above HMOP.No.33 of 2020 on the file of the Subordinate Judge, Thirumangalam for divorce. The respondent / wife remained ex parte in the said HMOP.No.33 of 2020 and the ex parte divorce decree, dated 01.04.2022 came to be passed in favour of the revision petitioner / husband. Thereafter, the respondent / wife filed an application in I.A.No.1 of 2022 in HMOP.No.33 of 2020 seeking to condone the delay of 53 days in filing an application to set aside the ex parte decree, dated 01.04.2022. The reasons given in the affidavit filed in support of the said I.A.No.1 of 2022 that her daughter was suffering from Chicken box on the date of hearing and was taking Country medicines and that she was unable to meet her counsel for giving

instructions to prefer the counter affidavit. The counter affidavit was filed by the revision petitioner in the above application denying the allegations contained in the affidavit filed in support of I.A.No.1 of 2022. In the counter affidavit he has specifically stated that the respondent / wife intentionally failed to appear before the Court to drag on the proceedings and that the petitioner was examined in chief on 29.10.2021 and the order _____ <https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024 was passed only on 01.04.2022 and only after passing of the ex parte decree the revision petitioner got married to one Malathy on 09.06.2022 and the same was registered before the Registrar of Marriage, Thiruparankundarm on 13.07.2022 and therefore, the prayer for dismissing the above condone delay petition. By order, dated 19.03.2024 the learned Subordinate Judge, Thirumangalam allowed the application in I.A.No.100 of 2022 filed by the respondent / wife in HMOP.No.33 of 2020 seeking to condone the delay of 53 days in filing an application to set aside the ex parte divorce decree, dated 01.04.2022. Aggrieved by the same, the present revision is preferred.

3. The learned counsel appearing for the revision petitioner would submit that the trial Court ought not to have condoned the said delay that too, when the revision petitioner got re-married subsequent to the passing of ex parte divorce decree. He would further submit that no proper explanation was given on the side of the respondent / wife except the reason that her daughter was suffering from chicken box at the time of hearing of the case and for which there is no documentary proof. Therefore, the delay cannot be condoned. In support of his contention he has relied upon the following reported Judgments:

_____ <https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024

i) 2023(3) MWN (Civil) 32 (Maheswari Vs. Ayyapan @ Kumar)

ii) 2019(6) CTC 2024 (B. Suresh Vs. A.Mahalakshmi)

iii) 2016(2) CTC 705 (A.Raja Sundari Vs. Suresh Kumar)

4. On the other hand, the learned counsel appearing for the respondent / wife would submit that the remarriage of the revision petitioner cannot be a reason to dismiss the application filed by the revision petitioner / wife for setting aside the ex parte decree. Therefore, there is no legality or perversity in the order passed by the trial Court setting aside the ex parte decree of divorce passed against the respondent / wife after condoning the delay of 53 days in filing an application and prays for dismissing this Civil Revision Petition. In support of his contention, he has relied upon the Judgment of the High Court of Kerala, dated 17.10.2018 made in Mat.Appeal. No.923 of 2028 in the case of (Denny Pazhoor Vs. Greeta Sunitha Vincent).

5. Heard both sides and perused the materials available on record.

6. This Court has perused the affidavit filed in support of I.A.No. _____ <https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024 100 of 2022, wherein the

respondent / wife except stating that on the date of hearing i.e., on 17.09.2021, when the original petition was posted for counter of respondent, the daughter of the respondent was suffering from Chicken Box. Apart from that no other reason has been given in the affidavit for condoning the delay of 53 days in filing an application to set aside the ex parte divorce decree, dated 01.04.2022. Further, no evidence was produced before the trial Court to prove the alleged illness of the respondent's daughter on the date of passing of the ex parte decree. Moreover, it is an admitted fact that the revision petitioner / husband has re-married after statutory period for setting aside the ex parte decree. It is relevant to refer Section 15 of the Hindu Marriage Act, 1955:

“15. Divorced persons when marry again:- When a marriage has been dissolved by a decree of divorce and other there is no right of appeal against the decree or, if there is such a right of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again.” As per Section 15 of the Hindu Marriage Act, 1955 which shall be lawful for either party to re-marry after no appeal has been filed. In this case though the ex parte decree was passed on 01.04.2022 the respondent / wife did not file an application to set aside the ex parte decree within the _____ <https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024 statutory period. In the meanwhile, the revision petitioner / husband has married one Malathi on 09.06.2022. Eventually, now, the third party right has also been involved in this matter. As it is observed in the Judgment reported in 2023(3) MWN (Civil) 32 in the case of Maheswari vs. Ayyappan @ Kumar, the right of re-marriage cannot be lightly dealt under Section 5 of the Limitation Act. In the Judgment referred on the side of the respondent / wife sufficient ground was established for setting aside the ex parte decree, whereas in this case, no sufficient ground is established.

7. Therefore, this Court is of the view that when an opportunity was available to the respondent / wife to file an application to set aside the ex parte decree within the reasonable time, having failed to file within the statutory period and filed after 53 days, as per Section 5 of the Limitation Act, the said application has become infructuous. As the revision petitioner has re-married in the interregnum is within the frame work of Section 15 of the Hindu Marriage Act. Therefore, this Court is inclined to allow this revision setting aside the order, dated 19.03.2024 made in I.A.No.100 of 2022 in HMOP.No.33 of 2020 on the file of the Subordinate Judge, Thirumangalam. .

_____ <https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024

8. Accordingly, this Civil Revision Petition is allowed. No costs. Consequently, the connected Miscellaneous Petition is closed.

20.12.2024 Index: Yes/ No Neutral Citation: Yes / No Speaking Order/Non-Speaking Order trp
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The Subordinate Judge, Thirumangalam. _____
<https://www.mhc.tn.gov.in/judis> C.R.P.(PD)(MD) No.1745 of 2024
K.GOVINDARAJAN THILAKAVADI, J.

trp Pre-Delivery Order made in C.R.P.(MD) No.1745 of 2024 and 20.12.2024
_____ <https://www.mhc.tn.gov.in/judis>